necessitate.' Now, pursuant to the provisions of the Constitution several State Legislatures have passed laws. The Bihar law has been declared to be ultra vires by the Patna High Court – mind you, not on the ground of compensation but on an entirely different ground: the question of discrimination between one class and another. Well, whether that judgment is right or not is not my point. Then the UP Legislature has passed a law which the Allahabad High Court has held to be intra vires. The Nagpur High Court also has held the Madhya Pradesh Act to be intra vires. If the Patna High Court has passed a judgment which according to Government is not correct – in fact, some aspects of the matter are already before the Supreme Court – the only way in which any Government can or should proceed, is to have a quick decision made by the Supreme Court.

Shri Bharati: How can that be done?

Dr S.P. Mookerjee: That can easily be done. You consult the Law Minister or the Attorney General, they will advise you. You get a quick decision by the Supreme Court. Supposing it takes a month, or two months even, if the Supreme Court comes to a certain conclusion which you consider to be fundamentally opposed to the basic principles on which the Constitution was framed then and only then would there be the right for you to ask for an amendment of the Constitution. That is the only logical, fair and equitable procedure which any Government which believes in the sanctity and sacredness of any Constitution, or any Parliament, which believes in such sacredness and sanctity would follow. But what is it you are doing? Will honourable Members read and re-read the clause as it has been proposed? What you say is that particular laws which are to be mentioned in a Schedule to the Constitution, no matter whether they infringe any provision of the Constitution or not, are deemed to be valid. Is that the way in which the Constitution should be amended?

Supposing a particular Legislature passes a piece of legislation which is absolutely nonsensical. By this amendment to the Constitution you are saying that whatever legislation is passed it is deemed to be the law. Then